

Anjana vs State Of U.P. on 6 November, 2024

Author: Rajeev Misra

Bench: Rajeev Misra

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:174094

Court No. - 72

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 30976 of 2024

Applicant :- Anjana

Opposite Party :- State of U.P.

Counsel for Applicant :- Hari Om Sharan Tiwari, Shrikant Chaturvedi

Counsel for Opposite Party :- G.A.

Hon'ble Rajeev Misra, J.

Heard Mr. Hariom Sharan Tiwari, the learned counsel for applicant, the learned A.G.A. for State.

This third application for bail has been filed by applicant-Anjana seeking his enlargement on bail in Case Crime No. 124 of 2018, under sections 354D, 306, 506 IPC, Police Station- Meja, District- Prayagraj, during the pendency of trial i.e. Sessions Trial No. 373 of 2018 (State Vs. Ajay Kumar), under sections 354D, 306 and 506 IPC, Police Station- Meja, District- Prayagraj, now pending in the Court of Additional District Judge (POCSO Act), Prayagraj.

The first bail application of applicant was rejected by this Court by a detailed order dated 4.12.2018, passed in Criminal Misc. Bail Application No. 39717 of 2018 (Anjana Vs State of U.P.). For ready reference the order dated 4.12.2018 is reproduced herein under:

"1. Heard Mr. Ramesh Chandra Yadav, the learned counsel for the applicant and the learned A.G.A. for the State.

2. Supplementary affidavit filed on behalf of the applicant today in Court, is taken on record.

3. This application for bail has been filed by the applicant-Anjana seeking his enlargement on bail in Case Crime No. 124 of 2018, under Sections 354D, 306 and 506 I.P.C., Police Station-Meja, District-Allahabad, during the pendency of the trial.

4. It transpires from the record that on the fateful day, i.e. on 14.03.2018, a young girl, namely, Kanchan Devi committed suicide by immolating herself. The first information report in respect of the aforesaid incident was lodged on 14.03.2018 by the mother of the deceased, which came to be registered as Case Crime No. 0124 of 2018, under Sections 354D, 306, 511 and 506 I.P.C., Police Station-Meja, District-Allahabad.

5. In the aforesaid F.I.R., two persons, namely, Ajay Kumar and Anjana (the applicant herein) were nominated as named accused. It is the case of the prosecution that after the happening of the occurrence on 14.03.2018, the victim was admitted to S.R.N. Hospital, Allahabad where she had undergone treatment upto 25.03.2018. Ultimately, the victim died on 25.03.2018. While the victim was undergoing treatment at the aforesaid Hospital her dying declaration was recorded on 15.03.2018. The allegations in the F.I.R. clearly implicated the present applicant on account of eve teasing and molestation. The prosecution version as unfolded in the F.I.R. also stands corroborated by the dying declaration of the deceased which is on the record at page 16 of the paper-book as Annexure-3 to the affidavit. Learned counsel for the applicant submits that the applicant has been falsely implicated inasmuch as the applicant is the resident of the same village where the victim /deceased was residing.

6. Be that as it may, there is nothing on the record to disbelieve the dying declaration of the deceased upto this stage. A perusal of the dying declaration will further go to show that the allegations of eve teasing, obscene gesture and molestation have specifically been levelled against the applicant. The post-mortem of the body of the deceased was conducted on 25.03.2018. The Doctor, who conducted the autopsy on the body of the deceased, opined that the death of the deceased was on account of septicaemia shock as a result of ante mortem burn injuries. The Doctor further noted that superficial to deep burn injuries were present all over the body of the deceased except certain parts of the body which has been detailed in the Post-Mortem Report itself and finds mention at page 15 of the supplementary affidavit filed today.

7. The Police upon completion of the statutory investigation of the aforesaid case crime number in terms of Chapter XII Cr.P.C. has submitted a charge-sheet dated

24.06.2018 against both the named accused. What has happened subsequent to the submission of the charge sheet dated 24.06.2018 has not been detailed in the affidavit accompanying the present bail application nor the learned counsel for the applicant has been able to detail the same at the time hearing of the present bail application.

8. Learned counsel for the applicant submits that though the applicant is a charged sheeted accused but he is innocent. The applicant is in Jail since 14.06.2018. The applicant has no criminal antecedents to his credit except the present one. No deliberate act has been committed by the present applicant in the commission of the alleged crime. He therefore submits that the applicant is liable to be enlarged on bail.

9. Per contra, the learned AGA has opposed the prayer for bail. He submits that the applicant is a charge-sheeted accused. He has invited the attention of the Court to the dying declaration of the deceased which was recorded on 15.03.2018 and the photocopy of the same is on the record at page 14 of the paper-book. Referring to the aforesaid dying declaration of the deceased, he submits that the deceased has clearly implicated the present applicant in the commission of immolation. It is further submitted that since the charge-sheet has been submitted on 14.06.2018, trial of the case must have commenced. Therefore, interest of justice shall better be served in case a direction is issued to the trial court to expedite the trial itself instead of considering the bail application of the applicant on merits. On the aforesaid factual premise, he submits that the applicant is not entitled to any indulgence by this Court. The bail application of the applicant is thus liable to be rejected.

10. Having heard the learned counsel for the applicant, learned A.G.A. for the State and upon perusal of the material brought on record and the complicity of the applicant but without expressing any opinion on merits of the case, I do not find any good ground to allow the present application. Consequently, the bail application of the applicant is hereby rejected.

11. However, at this stage, it is expected from the learned trial court to gear up the trial and make necessary endeavour to conclude the same within six months provided the applicant would render all necessary co-operation in early conclusion of the trial.

12. Office is directed to communicate the copy of this order forthwith to concerned court for necessary compliance. "

Therefore, applicant filed his repeat application for bail which was registered as Criminal Misc Bail Application No. 28701 of 2021 (Anjana Vs. State of U.P.). The same was also rejected by this Court vide order dated 6.2.2024. The order dated 6.2.2024 reads as under:

"1. Heard learned counsel for the applicant, learned A.G.A. for the State and perused the record.

2. The present second bail application has been filed by the applicant involved in Case Crime No.124 of 2018, under Sections 354D, 306, 506 I.P.C., Police Station-Meja, District-Prayagraj, with the prayer to enlarge him on bail. The first bail application of applicant was rejected by this Court vide order dated 4.12.2018, passed in Criminal Misc. Bail Application No. 39717 of 2018.

3. It has been argued by learned counsel for the applicant that the applicant is innocent and he has been falsely implicated in this case. As per prosecution version, the deceased was being harassed and molested by the applicant and co-accused Ajay and due to that reason the deceased put herself on fire and committed suicide. Learned counsel submitted that there is no credible evidence that applicant has ever harassed or molested the deceased. The alleged dying declaration of deceased is not reliable. Learned counsel has also referred the case of Ram Saran Pal alias Lallu vs. State of Uttar Pradesh [(2018) 13 Supreme Court Cases 260].

4. It is further submitted that first bail application of applicant was rejected by this Court vide order dated 4.12.2018, passed in Criminal Misc. Bail Application No.39717 of 2018 and the trial court was directed to make necessary endeavour to conclude the trial within a period of six months but trial has not been concluded so far, whereas, the applicant is in jail since 14.06.2018 having no criminal history and that in case the applicant is released on bail, he will not misuse the liberty of bail and will cooperate in trial.

5. Learned A.G.A. has opposed the prayer for bail and argued that first bail application of applicant was rejected by this Court on merits and that there are serious allegations that applicant and co-accused have harassed and molested the deceased due to which, she has committed suicide by burning herself.

6. Perusal of record shows that the first bail application of applicant was rejected by this Court vide order dated 4.12.2018 and the trial court was directed to expedite the trial and to decide the same within the period of six months. It appears that all the material witnesses have already been examined and that only some formal witnesses are yet to be examined. Considering the submissions of learned counsel for the parties, nature of accusation, and all attending facts, particularly, the fact that all the material witnesses have already been examined, this court is not inclined to enlarge the applicant on bail. Hence, the second bail application of applicant is hereby rejected.

7. However, keeping in view of period of incarceration of applicant, the Trial Court is again directed to expedite the trial and to decide the same preferably within a period of six months from the date of production/receipt of the copy of this order, if there is no legal impediment.

8. In case the trial is not concluded within the aforesaid period the applicant would be at liberty to file a fresh bail application in accordance with law. "

Applicant has now filed the present third application for bail.

Learned counsel for applicant contends that though the applicant is a named and charge-sheeted accused yet he is liable to be enlarged on bail. The trial of applicant has already commenced. Up to this stage, seven prosecution witnesses have deposed before Court below. In the charge sheet so submitted there are as many as 14 prosecution witnesses. On the aforesaid premise, he contends that there is no liklihood of trial getting concluded in near future. Moreover once the statement of the prosecutrix stands recorded before court below then in that eventuality it cannot be said that if the applicant is enlarged on bail he shall either terrorize the witnesses or shall hamper the course of trial. As such, no good ground now exists to prolong the custodial arrest of applicant.

Even otherwise, applicant is a man of clean antecedents inasmuch as he has no criminal history to his credit except the present one. Applicant is in jail since 14.6.2018. As such, he has undergone more than six years and four months of incarceration. Police report in terms of Section 173 (2) Cr.P.C. has already been submitted against applicant, as such, the entire evidence sought to be relied upon by the prosecution against applicant stands crystalized. However, upto this stage, no such, incriminating circumstance has emerged necessitating the custodial arrest of applicant during the pendency of trial. There are no chances of the applicant fleeing away in case he is enlarged on bail. It is thus urged by the learned counsel for applicant that applicant is liable to be enlarged on bail. In case the applicant is enlarged on bail, he shall not misuse the liberty of bail and shall co-operate with the trial.

Per contra, the learned A.G.A. has opposed the prayer for bail. He submits that previous bail applications of applicant were rejected primarily on the ground that deceased in her dying declaration has clearly implicated the applicant for immolating her. As such, no indulgence be granted to applicant by this Court. Considering the nature and gravity of offence, and the period of punishment prescribed, the period of incarceration undergone by applicant is by itself not so sufficient a ground so as to enlarge the applicant on bail.

When confronted with above, the learned counsel for applicant could not overcome the same.

Having heard the learned counsel for applicant, the learned A.G.A. for State, upon perusal of material brought on record, evidence, nature and gravity of offence as well as complicity of applicant, accusation made coupled with the fact that the objections raised by the learned A.G.A. in opposition to the present application for bail could not be dislodged by learned counsel for applicant, with reference to the record therefore irrespective of the varied submissions urged by learned counsel for applicant in support of the present application for bail, but without making any comment on the merits of the case, this Court does not find any new good or sufficient ground so as to enlarge the applicant on bail.

In view of above, the present application fails and is liable to be rejected.

It is accordingly rejected.

Order Date :- 6.11.2024 Arshad